

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
July 31, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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9:00 AM

Line 1

24-CIV-08213	JANEEN MARQUARDT, ET AL VS. PHILIP PERA, ET AL
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JANEEN MARQUARDT
PHILIP PERA

WILLIAM S. WILSON
ASHLEY E. KLEIN

Defendant Philip Pera and Marlita Pera's Motion to Compel Arbitration and Stay Pending Action

TENTATIVE RULING:

For the reasons stated below, Defendants Philip and Marlita Peras's (the "Pera Defendants") "Motion for Order Compelling Arbitration and Staying Pending Action," filed Dec. 24, 2025, is GRANTED. (Code Civ. Proc. § 1280 et. seq.; Federal Arbitration Act.) Plaintiffs Janeen and Robert Marquardt's ("Plaintiffs") pending case against Defendants Randall Berend and Coastsides, Inc. dba Coastsides Associates Real Estate (the "Broker Defendants") is HEREBY STAYED, pending completion of the arbitration proceeding.

Background.

This action arises from Plaintiffs Janeen and Robert Marquardt's November 2021 purchase of property located 722 Talbot Ave, Pacifica, CA (the "Property") from the Pera Defendants, using the California Association of Realtors' standard California Residential Purchase Agreement (the "Purchase Agreement"). (Azad Decl. ¶ 2, Ex. A; FAC ¶¶ 1, 10-11.) The Pera Defendants were represented in the transaction by the Broker Defendants. (FAC ¶¶ 4-5, 14.) The Marquardt Plaintiffs (buyers) allege that the Pera Defendants (sellers) misrepresented that the Property had been used as a profitable short-term Airbnb rental. (FAC ¶¶ 11-13) As alleged, Plaintiffs later learned that the Property did not conform to the City of Pacifica's short-term rental requirements and had never been inspected for compliance. (Id. ¶¶ 16-17.)

The Purchase Agreement included a mandatory arbitration clause that broadly required that "any dispute or claim in law or equity arising between [the parties] out of this Agreement or any resulting transaction, which is not settled through mediation, shall be decided by neutral, binding arbitration." (Azad Decl., ¶ 3 [Purchase Agreement, ¶ 22].) The Purchase Agreement also required that the parties participate in a mediation prior to any binding arbitration.

Plaintiffs and the Pera Defendants (buyers and sellers) do not dispute that they entered into the Purchase Agreement and that it contains an arbitration clause. There is no dispute that its broad

arbitration language encompasses the causes of action asserted in this case against the Pera Defendants.

In December 2024, Plaintiffs filed their initial Complaint against both the Peras Defendants and the Broker Defendants, but Plaintiffs served only the Broker Defendants. In January and February 2025, Plaintiffs and the Peras Defendants participated in a two-session JAMS mediation, without success. Throughout much of 2025, Plaintiffs and the Broker Defendants litigated this case, including exchanging written discovery. Throughout most of 2025, the Pera Defendants did not participate in the lawsuit, as they had not been served with the original Complaint.

On Oct. 9, 2025, Plaintiffs filed a First Amended Complaint (“FAC”), and shortly thereafter, served it on *both* the Broker Defendants and the Pera Defendants. Per the filed Proof of Service, Plaintiffs served the Pera Defendants with the FAC on Nov. 4, 2025, in Arizona. In late November 2025, the Pera Defendants contacted Plaintiffs and informed them that they intended to file both a motion to compel arbitration and a demurrer to the FAC. The Pera Defendants asked Plaintiffs to stipulate that Plaintiffs would not argue that their filing of a demurrer constituted a waiver of the Pera Defendants right to compel arbitration, to which Plaintiffs did not agree.

On Dec. 24, 2025, the Pera Defendants went ahead and filed both the present motion to compel arbitration and a demurrer to the FAC. Due to the Court’s Law & Motion calendar schedule, the soonest available hearing dates were in July 2026. Notably, both this motion to compel arbitration and demurrer were filed on the very same day. While parties’ have some input on dates they can request for a hearing, ultimately it is up to the Court and in this instance the Court Clerk apparently then set the hearing date on their demurrer for July 24, 2026, and set the hearing date on their motion to compel arbitration for July 31, 2026. The timing on these hearings thus does not support any waiver argument.

Plaintiffs later sought to shorten time for a hearing on the demurrer, which they could not do, because the Court had no sooner available hearing dates. The July 24, 2026 demurrer hearing went forward. The Court ruled on the Pera Defendants’ demurrer to all eight causes of action asserted against them in the FAC. (July 24, 2026 Minute Order.) and expressly granted an extended period of time for any amendment due to this motion to compel arbitration being held one week later.

In opposing the Pera Defendants’ motion to compel arbitration, Plaintiffs assert two arguments: (1) that the Pera Defendants waived their right to arbitrate; and (2) given that Plaintiffs’ lawsuit against the Broker Defendants involves substantially the same facts and claims, and arises from the same transaction, the Court should exercise its authority under Code Civ. Proc. § 1281.2(c) to deny the Pera Defendants’ motion to compel arbitration and litigate all claims against all defendants in court, for the purpose of promoting judicial economy, efficiency, and to avoid duplicative proceedings and the risk of inconsistent rulings.

All parties agree that the agreement to arbitrate “shall be governed by the Federal Arbitration Act,” thus the Court cannot deny the Pera Defendants’ motion to compel arbitration based on § 1281.2(c).

In *Victrola 89, LLC v. Jaman Props. 8 LLC* (2020) 46 Cal.App.5th 337, a case involving similar facts, the trial court exercised its discretion § 1281.2(c) and denied a motion to compel arbitration because there were other defendants in the lawsuit who were not parties to the arbitration agreement, and therefore could not be compelled to arbitrate. (*Id.* at 345-352.) The trial court found granting the motion would result in two separate proceedings, creating a possibility of conflicting rulings. (*Id.*) The Court of Appeal reversed. (*Id.*) The appellate court held that where the parties to a real estate transaction had expressly agreed in their Purchase Agreement that the Federal Arbitration Agreement (FAA) would govern whether their agreement to arbitrate shall be *enforced*, the trial court could not use § 1281.2(c) to deny arbitration. (*Id.*) The *Victrola* court began by stating:

“In accordance with choice-of-law principles, the parties may limit the trial court’s authority to stay or deny arbitration under the CAA by adopting the more restrictive procedural provisions of the FAA The question, therefore, is whether the parties expressly incorporated the FAA’s procedural provisions into their agreements.”

(*Id.* at 345.) The Court noted that the Purchase Agreement’s arbitration clause stated: “Enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act.” Based on this language, the Court found that the parties intended to incorporate the FAA with respect to compelling arbitration. (*Id.* at 345-352.) “It follows that when an agreement provides that its ‘enforcement’ shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration. (*Id.*) Because the parties had expressly agreed that the FAA would govern enforcement of the arbitration agreement, the Court concluded that the trial court could not look to Section 1281.2(c) to deny the motion to compel arbitration. (*Id.*)

Victrola appears to be on point and binding, thereby precluding this Court from denying the Pera Defendants’ motion to compel arbitration by exercising discretion under § 1281.2(c), regardless of the fact that Plaintiffs are litigating a substantially related lawsuit against the Brokers Defendants, who are not subject to the arbitration clause. Because the Court cannot deny the motion using § 1281.2(c), the outcome of this motion to compel arbitration hinges on the waiver issue.

The Court finds that the Pera Defendants did not waive the right to arbitrate.

In *Quach v. California Com. Club, Inc.* (2024) 16 Cal. 5th 562, 573, the California Supreme Court identified several factors trial courts should consider when assessing an argument that a defendant has waived the right to arbitrate, including: “(1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether ‘the litigation machinery has been substantially invoked’ and the parties ‘were well into preparation of a lawsuit’ before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay;

(4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) ‘whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place’; and (6) whether the delay ‘affected, misled, or prejudiced’ the opposing party.”

The Pera Defendants have some facts weighing against a finding of waiver.

First, while Plaintiffs discuss many events that took place before the Peras were ever served with a Summons, the Pera Defendants were first served with a Summons in this case (for the FAC) on Nov. 4, 2025, and they filed a motion to compel arbitration on Dec. 24, 2025, *the very next month*. That is a very short timeframe. In fact, on Nov. 24, 2025, *just 20 days after being served*, the Pera Defendants’ counsel contacted Plaintiffs’ counsel informing Plaintiffs of the Pera Defendants’ plan to file a motion to compel arbitration and a demurrer, and requesting a stipulation that filing a simultaneous demurrer would not be characterized as a waiver of the Peras’ right to arbitrate. Thus, unlike the classic waiver case where a defendant spends months litigating while concealing an intention to arbitrate, the Pera Defendants, promptly after being served, notified Plaintiffs of their desire to arbitrate, and quickly filed the motion to compel arbitration.

Second, while the hearing on this motion to compel arbitration is taking place seven months after the Pera Defendants filed it on Dec. 24, 2025, that fact is the result of the Court’s congested calendar—not any intentional delay on the Peras’ part.

Further, the Pera Defendants’ participation in discovery has been minimal and largely unavoidable. It appears the Pera Defendants have propounded no discovery, taken no depositions, and served no subpoenas. That is, they have not initiated any discovery. They have merely responded to some limited written discovery served by the Broker Defendants, which the Peras were arguably obligated to do, since the mere filing of a motion to compel arbitration does not stay discovery. (*Brock v. Kaiser Found. Hosps.* (1992) 10 Cal.App.4th 1790, 1796.) The Pera Defendants’ participation in mediation is not a fact weighing in favor of waiver, given that mediation was a required prerequisite to participation in an arbitration. (See Purchase Agreement at Sect. 22 [“DISPUTE RESOLUTION: A. MEDIATION: The Parties agree to mediate any claim arising between them out of this Agreement, or any resulting transaction, before resorting to arbitration ...”])

What could complicate the waiver analysis is the demurrer that the Pera Defendants filed and *set for a hearing before the hearing on their motion to compel arbitration*. The Pera Defendants filed the demurrer and the motion to compel arbitration on the same day (Dec. 24, 2025), but the demurrer hearing was a week earlier, and the Court engaged in a detailed analysis of the merits of all of the FAC’s eight (8) causes of action asserted against them and issued a ruling, *before the Court decided whether this case belongs in arbitration*. As noted above, the calendaring of these hearings was largely a function of the Court Clerk’s setting. The Court does not view this as a desire to have the demurrer heard first or as meaningful litigation conduct.

It is also difficult to conclude that the Peras Defendants' conduct ever communicated an abandonment of arbitration. Instead, as noted, immediately after being served with the Summons, they informed Plaintiffs that they would move to compel arbitration, and immediately, they identified the waiver issue that could be argued based on their simultaneous filing of a demurrer, and they promptly put their motion to compel arbitration before the Court. Not only was there no delay, but they continually made their desire to arbitrate clear.

The parties' January 2026 correspondence is interesting in the abstract. In their Opposition brief, Plaintiffs point out that the Pera Defendants set their demurrer to be heard on July 24, 2026, which Plaintiffs argue was "a full week before" the hearing on the motion to compel arbitration, and Plaintiffs argue that "[a] litigant should not be permitted to "test[] the water before taking the swim" and "go elsewhere" if the water is chilly. (Opp. at 7-8.) But it does not appear that Plaintiffs ever objected to such sequencing. In fact, after the Pera Defendants noticed the demurrer and the motion to compel arbitration hearings for July 24, 2026 and July 31, 2026, respectively, Plaintiffs contacted the Peras' counsel, stating that they planned to ask the Court to expediate/shorten time for the *demurrer* hearing (but not the motion to compel arbitration hearing). The Pera Defendants expressed no objection to the demurrer hearing being expediated, but that didn't happen, due to the Court's busy calendar. (July 24, 2026 Azad Decl., Ex. A.) This background makes it difficult for Plaintiffs' to complain about the demurrer begin heard first—given that they wanted the demurrer to be heard far earlier. Regardless, the timing of these two hearings was largely a function of the Court Clerk's setting, and little else.

The Court declines to find that the Pera Defendants waived their right to arbitrate, and accordingly, their motion to compel arbitration is GRANTED. The claims asserted against them are stayed, pending completion of the arbitration. (Code Civ. Proc. § 1281.4.)

Plaintiffs' claims against the Broker Defendants are also HEREBY STAYED, pending completion of the Marquardt-Pera arbitration.

While the Court normally would not stay litigation that has been proceeding for a year and a half (about 19 months), the Court is inclined to do so here.

Plaintiffs and the Broker Defendants have been litigating this case since the Broker Defendants answered the initial complaint in January 2025. They have exchanged written discovery and produced documents. It appears that no depositions have taken place.

But the very facts that made the Plaintiffs' § 1281.2(c) argument somewhat compelling also supports a stay of the Broker litigation, given the Court's conclusion that it cannot deny the Peras Defendants' motion to compel arbitration based on § 1281.2(c). The two proceedings concern substantially similar facts. Both raises similar factual questions, such as what representations were made about rentals through Airbnb; whether and how often the Property had actually been rented through Airbnb; whether it legally could be rented for short-term rentals; whether such rentals generated \$60,000 per year in income; what the sellers told the brokers; what the brokers told the buyers, etc. Further, many of the causes of action asserted against the Pera and Broker Defendants overlap. If both proceedings (this court case *and an*

arbitration) go forward simultaneously, parties and witnesses could be deposed and examined, on the same topics, in two different forums. Allowing these questions to be adjudicated simultaneously before both an arbitrator and this Court would create precisely the duplication and inconsistent ruling problem that Plaintiffs have recognized.

A stay of Plaintiffs' lawsuit against the Broker Defendants, pending resolution of the arbitration, resolves much of this problem. (§ 1281.2(c).) It is up to all parties to decide whether or not the Broker Defendants wish to join in the arbitration. Judicial economy would certainly encourage this, but that is not before the Court.

Conclusion.

Having considered the parties' arguments in their totality, the Court GRANTS the Peras Defendants' motion to compel arbitration, and STAYS this lawsuit in its entirety, until completion of the Marquardt-Pera arbitration. The Case Management Conference scheduled for August 20, 2026 is thus continued to August 19, 2027 at 9:00 a.m., still before the Civil Commissioner in Dept. 30 / Courtroom H, on for Arbitration Status.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 2

25-CIV-00267 MCGUIRE AND HESTER, A CALIFORNIA CORPORATION VS. CARMEL
CONSTRUCTION WEST, LLC, ET AL

MCGUIRE AND HESTER, A CALIFORNIA CORPORATION
CARMEL CONSTRUCTION WEST, LLC

A ROBERT ROSIN
PETER V. DESSAU

Defendant City of Belmont's Motion for Judgment on the Pleadings

TENTATIVE RULING:

The Motion for Judgment on the Pleadings by Cross-Defendant City of Belmont ("City") to the First Amended Cross-Complaint ("FACC") of Defendants and Cross-Complainants Carmel Construction West, LLC, CP VII 815 Belmont, LLC and Argonaut Insurance Company ("Carmel Defendants") is DENIED.

A motion for judgment on the pleadings may be brought on the ground that a cause of action does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., § 438, subd. (c).) The grounds for the motion shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (*Id.*, subd. (d).) "Where the motion is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the court may otherwise permit." (*Ibid.*)

City's Request for Judicial Notice

The City did not specify the matter for which judicial notice is requested in the Notice of Motion or Memorandum. Nevertheless, the City filed a separate Request for Judicial Notice, in which judicial notice of the Cost Sharing Agreement ("CSA") is requested. The City asserts that the court may take judicial notice of this contract and facts that clearly derive from the contract's legal effect, citing *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 754 (*Scott*).

The Carmel Defendants oppose the request contending the CSA is beyond the scope of judicial notice and the City's reliance on *Scott* is misplaced. They further argue that the City has not authenticated the CSA or provided sufficient information to verify that the CSA is a true and correct copy, and that the CSA is an unsigned copy of what the City avers is a true and correct copy. Finally, they assert that the City asks the court to assume the truth of terms contained in the CSA.

In *Scott*, JPMorgan Chase filed a demurrer to the second amended complaint arguing that it rehashed the plaintiff's earlier pleading. (*Scott, supra*, 214 Cal.App.4th at p. 750.) JPMorgan did

not file a new request for judicial notice with its demurrer, but the parties and the trial court proceeded as if the earlier request for judicial notice could be considered in ruling on the demurrer. (*Ibid.*) In sustaining without leave to amend the demurrer to the second amended complaint, the court noted that the prior request for judicial notice was granted and based its ruling on these previously judicially noticed documents. (*Id.* at pp. 750-751.) This included judicial notice of a 2008 purchase agreement pursuant to which JP Morgan Chase acquired the assets of Washington Mutual from the Federal Deposit Insurance Corporation. (*Id.*, at p. 751.) On appeal, the plaintiff argued the trial court erred in taking judicial notice of the agreement and the facts therein. (*Id.* at p. 752.)

The Court of Appeal found that official acts by the FDIC were subject to judicial notice under Evidence Code section 452(c), which provides for judicial notice of official acts of the legislative, executive and judicial departments of the United States and of any state of the United States. (*Scott, supra* at p. 752.) This includes executive acts performed by administrative agencies. (*Ibid.*) Further, judicial notice may be taken under Evidence Code section 452(h) of facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (*Id.* at p. 753.) The purchase agreement and the transfer to JP Morgan of Washington Mutual assets were not reasonably subject to dispute and were capable of ready determination since the plaintiff did not question with specificity the authenticity, completeness or legal effect of the agreement posted on the official FDIC website. (*Ibid.*) The authenticity of the agreement was also buttressed by its posting on the FDIC website. (*Id.* at p. 755.)

In contrast, a court would not take judicial notice of the existence of a contract between private parties under Evidence Code section 452(h). (See *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145.) In *Gould*, an employer requested that the court take judicial notice of a written employment contract between the employer and employee under section 452(h). (*Ibid.*) The Court of Appeal found that the existence of a contract between private parties cannot be established by judicial notice under section 452(h). (*Ibid.*) The parties disputed whether an oral or written contract existed, and thus the dispute could not be resolved by resorting to facts and propositions that are not reasonably subject to dispute. (*Ibid.*) “Moreover, before a trial court could find that the existence of a contract was not reasonably subject to dispute the court would have to engage in the kind of fact-finding appropriate for a trial on the merits, not for a hearing on demurrer.” (*Id.*, at p. 1146.) Most matters subject to judicial notice can be established by reference to a statute, court file, treatise or other document, but a court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties. (*Ibid.*)

In this case, the City requests judicial notice pursuant to Evidence Code sections 452 and 453 without specifying which subdivision under section 452 applies. The City instead relies on *Scott*, which found judicial notice proper under Evidence Code section 452(c) and (h). Section 452(c) however, plainly does not apply here. Section 452(h) also does not assist as this is a purported contractual agreement that very well can be subject to dispute.. Even if the court found that the rationale in *Scott* applies to an agreement between two private parties, the City only provides an unsigned copy of the agreement. (Castella Decl., Exh. A.) The agreement is blank as to a signature, name and title. The date is also blank, even though the agreement purports to be

executed as of the effective date. It seems likely that the parties may have entered into a signed and dated agreement, but that is not before the court. As such, the City has not shown that this agreement is not reasonably subject to dispute and is capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. The City's Request for Judicial Notice of the CSA is therefore DENIED.

First and Third Causes of Action

The City's Motion to the First and Third Causes of Action depend on the court taking judicial notice of the CSA. Since the court denies the request, the Motion for Judgment on the Pleadings to the First and Third Causes of Action is also DENIED.

Second Cause of Action

The City's arguments in support of the Motion to the Second Cause of Action rely on the subcontract between Plaintiff McGuire and Hester ("Plaintiff") and the Carmel Defendants. The City did not request judicial notice of it. (See City's Request for Judicial Notice.) As such, the Carmel Defendants argue that the City's arguments fail because they rely on the subcontract. In reply, the City claims that the subcontract is attached as an exhibit to the Complaint. (City's Reply, p. 4, fn. 1.)

As already mentioned, judicial notice of a matter is to be specified in the notice of motion or supporting authorities. (Code Civ. Proc., § 438, subd. (d).) Further, a request for judicial notice shall list the specific items of which judicial notice is requested. (Cal. Rules of Court, rule 3.1113(l); Cal. Rules of Court, rule 3.1306(c)(1).) Since the City did not request judicial notice of the subcontract, the court does not take judicial notice of it.

For this reason, the City's Motion to the Second Cause of Action is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-00428 SHANQUAN BAO VS. META PLATFORMS, INC.

SHANQUAN BAO
META PLATFORMS, INC.

BRUCE J HIGHMAN
RACHEL JAN MOROSKI

Defendant's Motion to Stay Pending Appeal

TENTATIVE RULING:

Defendant Meta, Inc., has moved for a stay of the proceedings in this matter, pending the outcome of its appeal of this Court's Order denying its motion to compel arbitration.

Defendant's motion for a stay is DENIED.

BACKGROUND

Plaintiff, a former employee of Defendant Meta, has sued Meta for (1) Libel, (2) Violation of Labor Code Section 1102.5, (3) Violation of the Fair Employment and Housing Act (FEHA), and (4) Tortious Violation of Public Policy. The third cause of action is a retaliation claim premised on Plaintiff's allegation that Meta took adverse employment actions against him for opposing conduct that he "reasonably believed violated statutes against sexual harassment." (Complaint, ¶¶ 39-40.) The underlying conduct at issue consists of allegations that Plaintiff's manager "engaged in unwelcome conduct of a sexual nature" toward an unspecified person by: (1) "showing a picture with his shirt pulled up and showing his belly," (2) bragging about knowing a beautiful couple, and (3) saying that he wanted children but could not have them because his in-laws were staying with him. (*Id.* at ¶ 27.) Plaintiff did not personally observe any of this alleged conduct; he was told about it secondhand or thirdhand by a member of his team. *Id.* Plaintiff alleges that he reported the manager's alleged conduct to Meta, that Meta investigated, and that the investigator concluded the manager did not violate any policy. (*Id.* ¶ 31.)

On March 24, 2026, this Court denied Defendant's motion to compel arbitration on the basis that Plaintiff's retaliation claim fell under the Ending Forced Arbitration Act ("EFAA"), rendering the pre-dispute arbitration agreement between the parties invalid. On May 18, 2026, Defendant filed a Notice of Appeal. On July 7, 2026, Defendant filed the instant motion for a stay pending appeal.

LEGAL STANDARD

Under Code Civ. Proc. § 1294(a), trial court proceedings are not automatically stayed during the pendency of an appeal of an order denying a motion to compel arbitration. However, trial courts

retain “inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; *see also* Code Civ. Proc., § 128.)

In determining whether to issue a discretionary stay, California courts engage in a “balancing of equities.” *Daly v. San Bernardino County Bd. of Supervisors* (2021) 11 Cal.5th 1030, 1054; *Alpha Media Resort Investment Cases* (2019) 39 Cal.App.5th 1121, 1134, fn.10 [trial courts must balance the nature and substantiality of the injustices claimed on either side when deciding whether to grant or deny a stay].)

The balancing of equities includes the likelihood that substantial questions will be raised on appeal. (*People ex rel. San Francisco Bay Conservation & Dev. Comm’n v. Town of Emeryville* (1968) Cal.2d 533, 537 (hereafter, “*Emeryville*”) [a trial court is normally “the appropriate forum to weigh the relative hardships on the parties, including the likelihood that substantial questions will be raised on appeal”].) A stay is only warranted where the case involves difficult questions of law and the fruits of a reversal would be irrevocably lost unless the status quo is maintained. (*Ibid.*; *Daly*, *supra*, 11 Cal.5th at p. 1039;)

Citing federal caselaw, Defendant argues that the following factors are relevant in deciding whether to stay court proceedings during the pendency of appeal: (1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other parties interested in the proceedings; and (4) where the public interest lies.” (*Hilton v. Braunskill*, 481 U.S. 770, 776 (1987).)

As noted above, California state courts apply the “balancing of equities” framework and have not adopted the *Hilton* test identified by Defendant. However, the core inquiry is largely the same: whether the appeal has sufficient merit and whether the harm from proceeding outweighs the harm from delay. Plaintiff acknowledges that the first three factors of the *Hilton* test “amount to a balancing of the equities.” (Oppo., at p. 5:17-20.) Thus, while the Court does not adopt *Hilton* test as controlling authority, the Court nonetheless considers federal cases addressing those issues for their persuasive authority.

LEGAL ANALYSIS

1. Defendant’s Appeal Raises Substantial Issues

The balancing of equities includes the likelihood that substantial questions will be raised on appeal. (*Emeryville*, 69 Cal.2d at p. 537.) Unlike federal courts, California courts do not require a strong showing of likelihood on the merits but instead focus on whether there are “substantial questions” or “difficult questions of law” raised on appeal. (*Ibid.*)

Defendant argues that its appeal raises substantial questions, including (1) whether the EFAA applies to retaliation claims where the plaintiff reported sexual harassment but did not personally suffer or witness the alleged conduct; and (2) whether state courts must apply the federal

pleading standard when assessing whether a plaintiff's complaint adequately alleges conduct constituting sexual harassment.

The Court agrees. As this Court previously acknowledged, “[n]o California appellate authority has . . . expressly held that a claim for retaliation for reporting sexual harassment constitutes a sexual harassment dispute or that a case involving such a claim is subject to the EFAA.” (Order, March 24, 2026, at p.4.) The Court is further not aware of any cases addressing whether a retaliation claim is subject to the EFAA where the plaintiff did not personally suffer or witness the alleged conduct constituting sexual harassment but rather reported the alleged conduct after hearing of it second-hand from co-workers. Based on the ruling in this Court's Order denying Defendant's motion to compel – including but limited to the fact that the plain language of the EFAA broadly applies at the election of “the person alleging conduct constituting a sexual harassment dispute” (see 9 U.S.C. § 402, subd. (a).) – the Court does not find that Defendant has established an *actual* likelihood of success on the merits. However, under *Emeryville*, Defendant has established that its appeal raises substantial legal issues.

2. Defendant Has Not Established Irreparable Harm or Unjust Injury

Defendant further argues that if a stay is denied, it will suffer irreparable harm by losing the benefits of arbitration. However, California district courts have held that ordinary litigation costs and the theoretical loss arbitration's benefits of speed and efficiency do not constitute irreparable injury, particularly in the early stages of litigation. (See, e.g. *Trompeter v. Ally Fin., Inc.* (N.D. Cal. 2012) 914 F.Supp.2d 1067, 1078 [no irreparable harm where party may incur some costs of litigation in exchange of initial discovery and motion practice]; *Mohamed v. Uber Technologies, et al.* (N.D. Cal. Jul. 22, 2015) 115 F.Supp.3d 1024 1032-35 [finding defendant would not be harmed by reasonable discovery, explaining that the arbitration agreement contemplated civil discovery]; *Bradberry v. T-Mobile USA, Inc.* (N.D. Cal. Aug. 2, 2007) No. C-06-6567 CW, 2007 WL 2221076, at *4 [“The cost of some pretrial litigation does not constitute an irreparable harm to Defendant.”]; *Morse v. Servicemaster Global Holdings, Inc.* (N.D. Cal. Jan. 8, 2013) No. C10-628-SI, 2013 WL 123610, at *2 [recognizing that “the money and time a party must expend [during the litigation] process, while burdensome, does not alone constitute irreparable injury”] *Guifu Li v. A Perfect Franchise, Inc.* (N.D. Cal. Jun. 8, 2011) No. 10-cv-1189-LHK, 2011 WL 2293221, at *2 incurring litigation expenses does not amount to an irreparable harm.”].)

The Court finds that Defendant has not established a probability of irreparable harm absent a stay. And like *Mohamed*, *supra*, Defendant's arbitration agreement contemplates that discovery shall be allowed under the Federal Rules of Civil Procedure, further undermining Defendant's argument that it will incur costs that would otherwise be avoidable. (See McKenna Decl., July 3, 2025, Ex. B, Arbitration Agreement, at p. 3.)

Defendant has not met its burden to show that the balance of equities favors granting its motion for a stay.

3. Section 1294(a) Is Not Preempted by the FAA

Defendant alternatively argues that Code Civ. Proc., Section 1294(a) is pre-empted by the Federal Arbitration Act (“FAA”). Defendant explains that a state statute or rule is preempted by the FAA if it “stands as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress.” (MPA, at p. 19:9-11, citing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352.) Defendant argues that “[t]he exception to Code Civ. Proc. section 916, subd. (a) created by SB 365 is preempted because it is specific to arbitration and will make valid arbitration agreements effectively meaningless, since litigation will have already occurred by the time the court of appeal finds that an agreement is binding and enforceable.” (MPA, at p. 15-18.)

The Court does not find Defendant’s argument compelling. Defendant fails to cite relevant case law applying the preemption analysis or otherwise explain how Section 916(a) “will make valid arbitration agreements effectively meaningless.” Plaintiff has not established that Section 916(a) stands as an obstacle to the objectives of the FAA. Rather, Section 916(a) simply establishes that a stay of court proceedings is not mandatory where an appeal is pending after a court has ruled, as contemplated under the FAA, that the subject arbitration agreement is not binding on the claims in the case – including where, as here, federal law provides that an otherwise valid arbitration agreement is unenforceable. As Plaintiff notes, orders denying motions to compel arbitration are immediately appealable whereas orders compelling arbitration are not, which adequately favors arbitration consistent with both federal and state law. Section 916(a) also does not prohibit courts from granting a discretionary stay pending an appeal of an order denying a motion to compel arbitration, where a party has established that a discretionary stay is warranted.

Of course, Defendant’s argument also misses the mark since the FAA has been found essentially inapplicable to this action due to the EFAA, which question is the very subject of the appeal.

Accordingly, Defendant’s Motion for a Stay Pending Appeal Is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-01245 MATTHEW GARRETT VS. TITAN EMPIRE INC.

MATTHEW GARRETT
TITAN EMPIRE INC.

PAULA K. CANNY
MICHAEL J. EARLY

Defendant's Motion to Compel Further Discovery Responses and/or for Dismissal of the Complaint with Prejudice

TENTATIVE RULING:

Initially, the Court notes that Defendant provided the improper address for the hearing. Department 20 is not located in San Mateo as the notice states, but instead at the Northern Courthouse, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant Titan Empire Inc. dba The Titan Group, Professional Investigations' Motion to Compel Further Responses from Plaintiff Matthew Garrett filed January 20, 2026, is GRANTED in part and DENIED in part as set forth below. The Court notes that because the motion is made omnibus style and the responses all assert a common objection answer, the Court's decision is largely issued in a similar single ruling style as opposed to four separate rulings.

Plaintiff's Request for Judicial Notice of two exhibits is GRANTED. (Evid. Code §§ 451, 452, 453.)

A. Background

Plaintiff has been a middle school teacher since 1997. In February 2023 a student's parent made a complaint in the nature of a sexual assault to the school after a student told her mother that plaintiff had made her feel uncomfortable. The school district used a third-party investigator, Defendant Titan Empire Inc., to investigate. Plaintiff filed the underlying action alleging that the investigation was conducted in a negligent manner that both damaged plaintiff's reputation and resulted in allegedly false criminal charges.

On November 5, 2025, defendant served Form Interrogatories Set One, Request for Admission Set One, Special Interrogatories Set On, and Request for Production of Documents Set One on plaintiff. On December 9, 2025, plaintiff served his responses, all of which asserted the following boilerplate response to every request: "Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution."

Defendants bring the instant motion to compel responses to Request for Production of Documents Nos. 1-33, Request for Admissions Nos. 1-35, Special Interrogatories Nos. 1-35, and Form Interrogatory Nos. 1.1, 2.1-2.2, 2.52.13, 4.1-4.2, 6.1-6.7, 8.1-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1 pursuant to the Civil Discovery Act and also under the case authority of *Fremont Indemnity Co. v. Superior Court* (1982) 137 Cal. App. 3d 554 regarding the waiver of Fifth Amendment rights of a plaintiff who commences a civil action. In the alternative, defendant requests the Court dismiss the complaint with prejudice pursuant to Code of Civil Procedure sections 2023.010 and 2023.030.

Plaintiff opposes the motion, contending that California law is clear that Fifth Amendment rights are implicated when material in a civil case may be used against a defendant in a criminal action. (*Klein v. Superior Court (Thomas)* (1988) 198 Cal.3d 894, 905.) Because the criminal action involves similar and overlapping facts as the civil action, a stay is necessary to give plaintiff the ability to defend himself in both the criminal action and prosecute his civil matter that was facing a statute of limitations deadline when it was filed.

B. Legal Standard

“[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery.” (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superceded by statute].) “ ‘The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]’ [Citation.]” (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)” (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

That being said, “[d]iscovery devices must “be used as tools to facilitate litigation rather than as weapons to wage litigation.” (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 221.) “ ‘The trial courts in exercising their discretion should keep in mind that the Legislature has suggested that, where possible, the courts should impose partial limitations rather than outright denial of discovery....’ [Citation.]” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 559 (*Williams*).)

C. Discovery at Issue

I. Requests for Production of Documents and Things

Any party to an action may serve a written demand to permit inspection and copying of documents, electronically stored information, or other tangible things in the responding party's possession, custody, or control. (Code Civ. Proc., § 2031.010.) If the responding party objects to a demand, the party must (1) "[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made"; and (2) "[s]et forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated." (§ 2031.240, subd. (b).) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems the response is incomplete, inadequate or evasive. (Code Civ. Proc., § 2031.310, subd. (a).)

Defendant served a Request for Production of Documents Nos. 1-33 on November 5, 2025. Plaintiff's responses were served on December 9, 2025. Plaintiff responded to every request with the boilerplate objection "Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution." (Declaration of Nevin P. Miller, Esq. at p. 8, see also Miller Decl. Exs A & E.)

While the Court is not going to analyze every single one of the RFP's (No.'s 1-35), the Court will choose one as an example to illustrate how the blanket objection is wholly improper (choosing one example, does not mean that all other discovery requests do not need to be responded to in a code-compliant fashion).

RFP No. 21 seeks accolades, awards or commendations that Plaintiff would have received as a teacher. Responsive documents would be historical and pre-existing, given by others, with Plaintiff only being a recipient; as a recipient Plaintiff is not an author, and therefore such disclosure cannot be incriminating.

Separately however, it does appear that No.'s 4, 16, 24, 29 and 30 are potentially subject to the asserted privilege, and if there are responsive records withheld, a privilege log would also be required

II. Requests for Admission

The form and content of a request for admission is set forth in Code of Civil Procedure section 2033.060. Upon receipt of a response to a request for admission, a party may move for an order compelling a further response if party deems the response provided evasive, incomplete. (Code Civ. Proc. § 2033.290, subd. (a)(1).)

Defendant served their Request for Admissions Nos. 1-35 on November 5, 2025. Plaintiff's responses were served on December 9, 2025. Plaintiff responded to every request with the

boilerplate objection “Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution.” (Miller Decl. p. 8, see also Miller Decl. Exh. B & F.)

As above the Court is not going to analyze every single RFA (No.’s 1-35), but one example again illustrates that the blanket objection is wholly improper.

RFA No. 18 seeks an admission or denial that Plaintiff never paid Defendant for any services. This basic fact appears to have already largely been conceded by Plaintiff (“The Millbrae School District opened an investigation...They hired a private investigation firm called Titan....” Admitting that Plaintiff did not hire and pay Defendant (because the District did), is not incriminating.

III. Interrogatories

Code of Civil Procedure, section 2030.010 provides, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.”

A party may respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., § 2030.210 subd. (a).) Code of Civil Procedure section 2030.220 provides that, “(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

Here, defendant served their Special Interrogatories Nos. 1-35, and Form Interrogatories Nos. 1.1, 2.1-2.2, 2.52.13, 4.1-4.2, 6.1-6.7, 8.1-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1 on November 5, 2025. Plaintiff’s responses were served on December 9, 2025. Plaintiff responded to every interrogatory request with the boilerplate objection “Plaintiff objects to this request pursuant to the Fifth Amendment of the United States Constitution and Article 1 section 15 of the California State Constitution.” (Miller Decl. p. 8, see also Miller Decl. Exh. C, D, G & H.)

In addition to the generic Fifth Amendment objection, responses to Special Interrogatories 11, 14, 17 & 26 and responses to Form Interrogatories 2.6, 2.12, state the interrogatory seeks premature disclosure of expert witnesses and attorney work-product. Finally, response to Form Interrogatory 8.5 also objects that the request seeks premature disclosure of a witness list. These separate objections are distinct from the blanket objection and refusal under the Fifth Amendment privilege, and there may be a proper basis for same. However, there is both an inadequate meet and confer, nor adequate separate argument from either side on this separate objections. As the Court has discretionary power to control discovery, the Court sustains these objections and denies the motion to compel on these specific requests, but without prejudice to these very same questions being re-asked at a future date.

Defendant's argued basis to compel a further response is the same for all requests: a blanket refusal is inappropriate because the request applies to the factual contentions plaintiff made in his complaint therefore waiving his Fifth Amendment privilege citing *Fremont, infra*. (Separate Statement p. 2.)

Defendant adds to the form interrogatory responses that the responses to many form interrogatories do not, in any way, incriminate him nor subject him to a risk of criminal prosecution thus the Fifth Amendment does not apply. These requests are relevant and/or likely to lead to the discovery of admissible evidence. Providing information would neither "support a conviction" nor "furnish a link in the chain of evidence needed to prosecute" him under *Blackburn v. Superior Court* (1993) 21 Cal.App. 414, 428.) (See Separate Statement p. 42.) Lastly, regarding Form Interrogatory Nos. 12.1-17.1, defendant also contends that plaintiff is already required to disclose at least part of the information requested by these interrogatories under Penal Code section 1054.3 and the criminal complaint. In general the Court tends to agree. For example again, the entire 2.0 series seeks basic background information such as name, date of birth, residence and employment, etc., is not incriminating.

D. Burden of Proof

Once a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221 [regarding interrogatories specifically].) To do so, the responding party must affirmatively show that the burden of responding would be so great, and the benefit of the information sought would be so minimal, that it would defeat the ends of justice to require the party to answer. (*Columbia Broadcasting System, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19.)

Instead of presenting argument regarding their burden of production and protection other than speculating the possibility of implicated Fifth Amendment violations, plaintiff instead proffers suggestions that "[t]he court has several options before it that would protect the status quo... The first is to deny the Titan motion without prejudice and allow it to be brought at the end of the criminal matter. The second is to continue this hearing until October 30, the date of the Plaintiffs pending motion to stay the matter pending the resolution of the criminal proceeding. The third is to stay the entire matter now and wait until the criminal matter is completed." (Opp. p.3.)

Addressing the Court's calendaring options does not adequately present a particularized burden of response to each discovery request.

E. Discussion

Whatever their response to requests for accommodation of the conflicting constitutional rights of a defendant in concurrent civil and criminal proceedings, courts have consistently refrained from recognizing any Constitutional need for such accommodation. Rather, the alleviation of tension between constitutional rights has been treated as within the province of a court's discretion in seeking to assure the sound administration of justice. ... '[T]he fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation. ... The court, in its sound discretion, must assess and balance the nature and substantiality of the injustices claimed on either side.' (*Gordon v. Fed. Deposit Ins. Corp.* (1970) 138 U.S.App.D.C. 308, 427 F.2d 578, 580.)"

(*People v. Coleman* (1975) 13 Cal.3d 867, 885.)

Here, defendant relies on the authority of *Fremont Indemnity Company v. Superior Court* (1982) 137 Cal.App.3d 554 (*Fremont*) in support for their position that plaintiff's blanket, boilerplate objection to all discovery is prejudicial. In *Fremont*, a seminal case regarding the question of whether a plaintiff who files a civil action waives his constitutional privilege as to any facts tendered by the complaint, the Court of Appeal famously framed the issue as "whether a person can initiate a lawsuit and then by reliance upon the privilege against self-incrimination effectively prevent the party sued from getting at the facts by way of discovery, and thus prejudice preparation of his defense." (*Id.* at 557.) *Fremont* involved a civil lawsuit against an insurance company claiming fire insurance proceeds where the plaintiff was being indicted for arson on the very claim he was making.

On the one hand, the Court tends to agree with plaintiff that his alleged conduct does not directly intersect with defendant's conduct, based on the allegations in the complaint. The complaint in this action looks to the manner in which Titan conducted their investigation and whether defendant conducted the investigation negligently, whether defendant should have promptly reported the matter to the police to investigate, as allegedly Defendant's investigation "tainted the entire criminal investigation brought against Garrett." Complaint, ¶ 29. However, the investigation whether by Titan or the police, then leads to facts on Plaintiff's alleged actual conduct, which arguably may be incriminating and subject to the Fifth Amendment privilege.

On the other hand, the issues are certainly interrelated and easily meet the general test of relevance and discoverability, i.e. the investigations by Titan Empire, the related investigations by law enforcement and the facts underlying the criminal charges against Mr. Garrett are all discoverable because they could lead to the discovery of admissible evidence. The issue before the Court is the sheer breadth of the discovery before it given plaintiff's blanket objection to all of the discovery. The Court has attempted to address the breadth by using examples as above.

Plaintiff contends *none* of the information sought is relevant at this time- and perhaps at all- given the singular cause of action alleging defendant's negligence in the underlying case. This contention is entirely unconvincing. Further, "a blanket refusal to testify is unacceptable; a person claiming the Fifth Amendment privilege must do so with specific reference to particular questions asked or other evidence sought." (*Warford v. Medeiros* (1984) 160 Cal.App.3d 1035, 1045.)

Plaintiff is well to heed the Court's statement in *Williams, supra*, a case involving the right to privacy:

The flaw is the **de facto starting assumption** that such an egregious invasion is involved **in every request** for discovery of private information. **Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies,** as Hill requires.

(*Williams, supra*, 3 Cal.5th at 557, emphasis added.)

In further analogy, with respect to a non-party's testimony, "[T]he privilege [against self-incrimination] protects against real dangers, **not remote and speculative possibilities** (*Zicarelli v. New Jersey Investigation Comm'n* (1972) 406 U.S. 472, 478, 92 S.Ct. 1670, 1674, 32 L.Ed.2d 234), [thus] a witness must satisfy the court that the claim of privilege is justified and not a mere subterfuge. (*United States v. Mandujano* (1976) 425 U.S. 564, 575, 96 S.Ct. 1768, 1775, 48 L.Ed.2d 212; *Hoffman v. United States* (1951) 341 U.S. 479, 486, 71 S.Ct. 814, 818, 95 L.Ed. 1118.)" (*Warford v. Medeiros, supra*, 160 Cal.App.3d at 1043, emphasis added.)

Accordingly, pursuant to Warford's admonition that "a person claiming the Fifth Amendment privilege must do so with specific reference to particular questions asked or other evidence sought" (*Warford v. Medeiros, supra*, 160 Cal.App.3d at 1045) defendant's motion is GRANTED as to all of the discovery not excluded above.

F. Sanctions

Sanctions are authorized against a party who unsuccessfully brings a motion to compel further directed at interrogatories, requests for production or RFAs, unless the Court finds the party made the motion "with substantial justification" or other circumstances make the sanction "unjust." (Code Civ. Proc. §§ 2030.300, subd. (d), 2031.100, subd. (d), 2031.290, subd. (d), 2023.030, subd. (a).) However, neither side has requested any sanctions and the Court thus declines to impose any.

G. Amended Discovery Responses

In light of the above ruling, for each discovery request where the motion to compel is granted, Plaintiff is ordered to provide a code-compliant response within thirty (30) days from service of the Order after hearing. As the *Fremont* court has provided, “he cannot have his cake and eat it too” and the possible future remedy for non-compliance would be for this Court to entertain a future motion to dismiss. *Fremont v. Sup. Ct., supra*, 137 Cal.App.3d at 560.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

25-CIV-07522 KELLY TRAN VS. BAY AREA AG INC. A CALIFORNIA CORPORATION,
ET AL

KELLY TRAN
BAY AREA AG INC. A CALIFORNIA CORPORATION

RAMSEY HANAFI
SHAUN J. VOIGT

Defendant's Motion to Compel Arbitration and Stay or Dismiss Proceedings

TENTATIVE RULING:

Defendant Bay Area AG, Inc.'s Motion to Compel Arbitration and Stay or Dismiss Proceedings is DENIED.

Defendant Bay Area AG, Inc. ("BAAG") seeks to compel the claims asserted against it by Plaintiff Kelly Tran to arbitration, based upon an arbitration agreement she signed twice during her employment with BAAG. Tran does not dispute that she signed an otherwise enforceable arbitration agreement covering the claims asserted in the Complaint, instead contending that the agreement is invalid under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 ("EFAA").

A. EFAA Applies to Entire Cases

The EFAA renders a predispute arbitration agreement, at the plaintiff's election, invalid and unenforceable "with respect to a case which is filed under Federal, Tribal, or State law and relates to the ... the sexual harassment dispute." (9 U.S.C. § 402(a).) Indeed, 9 U.S.C. § 402(a) states, in part:

Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, ... no predispute arbitration agreement ... shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.

(9 U.S.C. § 402(a) [emphasis added].) The statute defines "sexual assault dispute" as "a dispute involving a nonconsensual sexual act or sexual contact, as such terms are defined in [18 U.S.C. § 2246] or similar applicable Tribal or State law[.]" 9 U.S.C. § 401(3).

Controlling California authority also holds, "when a plaintiff's lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit." (*Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791, 800.) "By its

plain language, ... the [EFAA] applies to the entire case, not merely to the sexual assault or sexual harassment claims alleged as a part of the case.” (*Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 577; accord. *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75, 89–90; *Casey v. Superior Court* (2025) 108 Cal.App.5th 575, 588.)

BAAG’s argument to the contrary—that only particular claims should be kept in court if the EFAA applies—is thus entirely without merit. As long as the present case relates to a dispute relating to conduct that is alleged to constitute sexual harassment under California law, then the entire case is exempt from arbitration.

B. Conduct is Adequately Alleged.

BAAG also contends that Tran has not adequately alleged conduct constituting sexual harassment and that she conflates discrimination and harassment.

The Court of Appeal has expressly left open the question of what need be pleaded for the EFAA to apply. (See *Liu v. Miniso Depot CA, Inc.*, *supra*, 105 Cal.App.5th at p. 799, fn. 2.) Subsequent published cases do not address the question and merely hold that pleading a valid a cause of action under state law as determined by federal pleading standards is sufficient to bring the entire action within the scope of the EFAA, but none have held that such pleading is necessary. (See *Decloedt v. Radnet Management, Inc.* (Jun. 26, 2026, B343963) __ Cal.App.5th __ 2026 WL 1959641, **6–7; *Quilala v. Securitas Security Services USA, Inc.*, *supra*, 117 Cal.App.5th at pp. 86–87.) Many federal district courts have, however, required a plaintiff to “show[] that his case relates to conduct that would, if proven, actually amount to sexual harassment under Federal, Tribal, or State law.” (*Smith v. Meta Platforms, Inc.* (S.D.N.Y. Sept. 30, 2025, No. 24 CIV. 4633 (JPC)) 2025 WL 2782484 (“*Smith*”), *8.) *Smith*, having rejected the requirement that the plaintiff assert a sexual harassment claim, notes:

To be sure, this does not mean that a party invoking the EFAA need necessarily state a cause of action for sexual harassment, because to invoke the EFAA, a party’s case need only “relat[e] to” sexual harassment. [Citation.] But regardless of the party’s cause of action, there still must be factual allegations sufficiently showing sexual harassment for a party to invoke the EFAA on account of a “sexual harassment dispute.”

(*Ibid.*)

BAAG argues that the allegations of sexual harassment must be plausible. This argument is based on the mistaken premise that federal pleadings standards of plausibility apply and that evidentiary facts such as those need to defeat summary judgment are required at the pleading stage. It is at the very least questionable whether, in state court, the allegations must satisfy the plausibility standards of *Bell Atlantic Corp. v. Twombly* (2007) 550 U.S. 544 and *Ashcroft v. Iqbal* (2009) 556 U.S. 662. In assessing the sufficiency of pleadings, California state courts do not assess whether the allegations are plausible. (See *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 618, fn. 12.) Likewise, only the ultimate facts are necessary, and evidentiary

allegations are not only superfluous but subject to being stricken. (See 4 Witkin, Cal. Proc. (6th ed. 2025) Pleading, § 406.) Furthermore, not all federal courts have required plausibility on this point, instead only requiring the allegations to be non-frivolous. (See, e.g., *Diaz-Roa v. Hermes Law, P.C.* (S.D.N.Y. 2024) 757 F.Supp.3d 498, 533.)

In support of its argument, BAAG cites to *Decloedt v. Radnet Management, Inc. supra*, __ Cal.App.5th __ 2026 WL 1959641, arguing that the case decided whether federal pleading standards apply. To the contrary, in that case, the Court of Appeal merely “[a]ssum[ed] arguendo the pleading standard in Rule 12(b)(6) applies,” because it held that the complaint satisfied the heightened standard regardless. (*Decloedt, supra*, at *6.) BAAG’s intimation that anything more was decided is erroneous—if not deceptive. In light of this representation and the argument discussed above regarding the EFAA’s application to entire cases, BAAG’s counsel is reminded that they owe a duty of candor to the Court. (See Rules Prof. Conduct, rule 3.3(a)(1).)

Certainly, there is no suggestion in the text of the EFAA that the question of whether a case relates to conduct relating to conduct that is alleged to constitute sexual harassment under state law turns on whether the plaintiff’s pleading sets forth allegations constituting a cause of action for sexual harassment under that satisfy federal pleading standards. Furthermore, as defined by the EFAA, a “sexual harassment dispute” is not one that relates merely to a *cause of action* for sexual harassment but “conduct alleged to constitute sexual harassment under applicable ... State law. (9 U.S.C. § 401(4); see *Olivieri v. Stifel, Nicolaus & Company, Incorporated* (2d Cir. 2024) 112 F.4th 74, 92 [allegations of retaliation for reporting sexual harassment is “sexual harassment dispute” under EFAA].)

Importantly, California state law renders *any* harassment based on sex or gender by an employer unlawful. (Gov. Code, § 12940, subd. (j)(1) [making unlawful for “any employer ... , because of ... sex ... to harass an employee ... ”].) When the harassment is so offensive, humiliating, distressing, or intrusive so as to create a hostile work environment, a cause of action may accrue, but the harassment itself is distinct from the resulting hostile work environment. (See *id.*, at § 12923, subd. (a).) That is, even if it does not give rise to a cause of action, the harassing conduct is still legally prohibited. And harassment does not merely include “[s]exual favors” and “unwanted sexual advances” but “epithets, derogatory comments or slurs on a basis” such as sex or gender. (Cal. Code Regs., tit. 2, § 11019, subd. (b)(2).)

Arguably the Complaint appears to conflate sexual harassment with sexual discrimination, such as when it complains that certain job privileges were given only to male employees. (See Sep. 25, 2025 Complaint, ¶¶ 13b–13c; see also *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 706–707 [harassment & discrimination are distinct].) Nevertheless, liberally interpreted as required (see Code Civ. Proc., § 452), the Complaint alleges that, throughout her employment, Tran “was publicly dismissed, criticized, and labeled ‘too strong,’ ‘too fierce,’ and ‘too aggressive’” while her “male colleagues never faced similar criticism or negative labeling” (Complaint, ¶ 13h). These criticisms were allegedly levied at Tran “based on her gender.” (*Id.*, at ¶ 13; see Gov. Code, § 12926, subd. (r)(2) [“‘Sex’ also includes, but is not limited to, a person’s gender”].))

Section 402(a) expressly applies to "**any case** ... which relates to the sexual assault dispute or the sexual harassment dispute." (9 U.S.C. § 402(a) [emphasis added].) The Legislature's use of the phrase "relates to" is inherently, and appears to be intentionally, broad. That phrase has been interpreted expansively in federal jurisprudence to mean having "a connection with," "bearing upon," or "referring to." (See *Morales v. TTWA* (1992) 504 U.S. 374, 383.)

While the alleged comments may arguably not be so severe and pervasive as to support a cause of action for sexual harassment, the comments are clearly conduct alleged to constitute sexual harassment under California law. Accordingly, this case is related to a dispute that is related to conduct alleged to constitute sexual harassment under state law, and the EFAA applies.

Because the Court finds that the EFAA applies, Defendant's Motion to Compel Arbitration is DENIED. "[T]he plain language of the EFAA exempts a plaintiff's entire case from arbitration." *Liu v. Miniso Depot, CA., Inc., supra*, 105 Cal.App.5th at 796 (emphasis added).

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM
Line 6 & 7

25-CLJ-05262 AMERICAN EXPRESS NATIONAL BANK VS. GABRIEL CORPUZ

AMERICAN EXPRESS NATIONAL BANK
GABRIEL CORPUZ

ERIC J. JUN
PRO SE

6. Defendant's Motion to Strike Proof of Service
7. Defendant's Motion to Quash Service of Summons and Complaint

TENTATIVE RULING:

Defendant Gabriel Corpuz has filed a Motion to Strike Proof of Service under Code of Civil Procedure ("CCP") Section 436. However, as Plaintiff's opposition notes, Section 436 only relates to motion under CCP Section 435 which by its plain language only applies to a type of "pleading" which is defined in the statute as a "demurrer, answer, complaint, or cross-complaint." CCP § 435(a)(2). Thus this attempt to strike a Proof of Service has no statutory basis, and it is summarily DENIED.

Defendant Gabriel Corpuz has also filed a Motion to Quash Service of Summons. After reviewing the entire motion, opposition, reply, and all related filings as reflected in the Court Registry which the Court takes Judicial Notice of (Evidence Code § 452(d)), this motion is likewise DENIED.

Defendant attempts to bring this motion to quash pursuant to Code of Civil Procedure ("CCP") Sections 418.10 and 410.50. However, Section 410.50 does not provide a basis for this motion, while Section 418.10 only allows a defendant to file a motion to quash service of summons on or before the last day of the time to plead and respond to such service of summons. CCP § 418.10(a)(1). This is not applicable, as Defendant's time to plead has already expired under the Proof of Service (POS) filed on November 5, 2025, and these motions were not filed under January 13, 2026. On this procedural basis, the motion is denied. Despite this, the Court still addresses the merits.

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the facts establishing effective service. *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Evidence Code Section 647:

The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.

In this case, the POS filed on November 5, 2025 is by a registered process server, which creates a presumption of valid service. The POS establishes substitute service for Defendant, by serving a

known adult located at 1 Mandalay Place, Unit 1603, South San Francisco, CA 94080. POS filed 11/5/2025. Defendant admits this is his residence (Corpuz Decl., ¶ 4 referring to this address as “my home”), that this adult and him certainly know each other, and this service address is his address of record on this motions. Defendant fails to overcome the presumption of valid service.

Defendant claims he was never personally served, which Plaintiff is not contending. Defendant then admits the documents were left with Carmela Young on August 18, 2025; but claims that he did not receive the mailing of the Summons and Complaint despite the POS’s attestation on mailing. Corpuz Decl., ¶¶ 3-6. Absent from the Corpuz Decl., are any facts that Carmela Young did not then provide the Summons and Complaint to the Defendant, nor any facts on how Defendant received notice of this action such that he could even file these motions. Additionally, the POS then properly attests to the mailing to Defendant’s residence address. Evidence Code Section 641 provides “[a] letter correctly addressed and properly mailed is presumed to have been received in the ordinary course of mail.” Defendant does not present any facts to support the argument that there were any problems in his receiving mail at his admitted home address, i.e. his declaration claiming to have not received the mailing is self-serving and not credible.

The Reply Declaration of Carmela Young was only submitted on reply, and therefore is untimely and need not be considered. However, the Court did review it and it still does not help Defendant’s motion. Ms. Young admits she was at the subject address, and that the pleadings were left with her at the subject address. Young Decl. ¶¶ 4, 10. Notably absent is any factual statement of what Ms. Young then did with the pleadings left with her. When coupled with the Corpuz Declaration, the burden has not been met to show the pleadings were not in fact given by Ms. Young to Defendant Corpuz.

Finally, Defendant Corpuz has now filed a general appearance in this case by the filing of these two motions. Therefore, the motion to quash is DENIED. Defendant is to file an answer or other responsive pleading within fifteen days after service of written notice of entry of order by Plaintiffs. (*See* Code Civ. Proc., § 418.10, subd. (b).)

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If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.